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10. SPECIAL USES AND ROADS ZONES

10.1 PUBLIC PURPOSES

LEP 2000 significantly reduced the number of Special Use zones from previous planning instruments. Many of these uses were already permissible in adjoining zones, such as schools and hospitals, and the special-use zone affected development options where traditional operations were changed.

Land zoned for “public purposes” under LEP 2000 is limited to land that is used for a specific purpose and which, due to the nature of the use, needs to be identified separately on the zoning map (including land used for Orange Airport, cemeteries, waste management and water supply).

PO 10.1-1 PLANNING OUTCOMES – DEVELOPMENT IN ZONE 5(a)

1 Development proposals within Zone 5(a) demonstrate how potential impacts on adjoining land will be addressed.

RELATED INFORMATION – PUBLIC PURPOSES
NSW EPA Industrial Noise Policy

10.2 DISTRIBUTOR ROADS

LEP 2000 retained the distributor roads from Orange LEP 11. Land acquired between 1982 and 2000 is uncoloured on the LEP plan map to indicate the proposed use of the land for roads.

The roads are defined on the map to identify land that may be required to be acquired for purposes of future roads, to identify the roads where direct access from adjoining land is prohibited and to identify the proposed location of the route in relation to other land and uses.

ACQUISITION AND DEDICATION

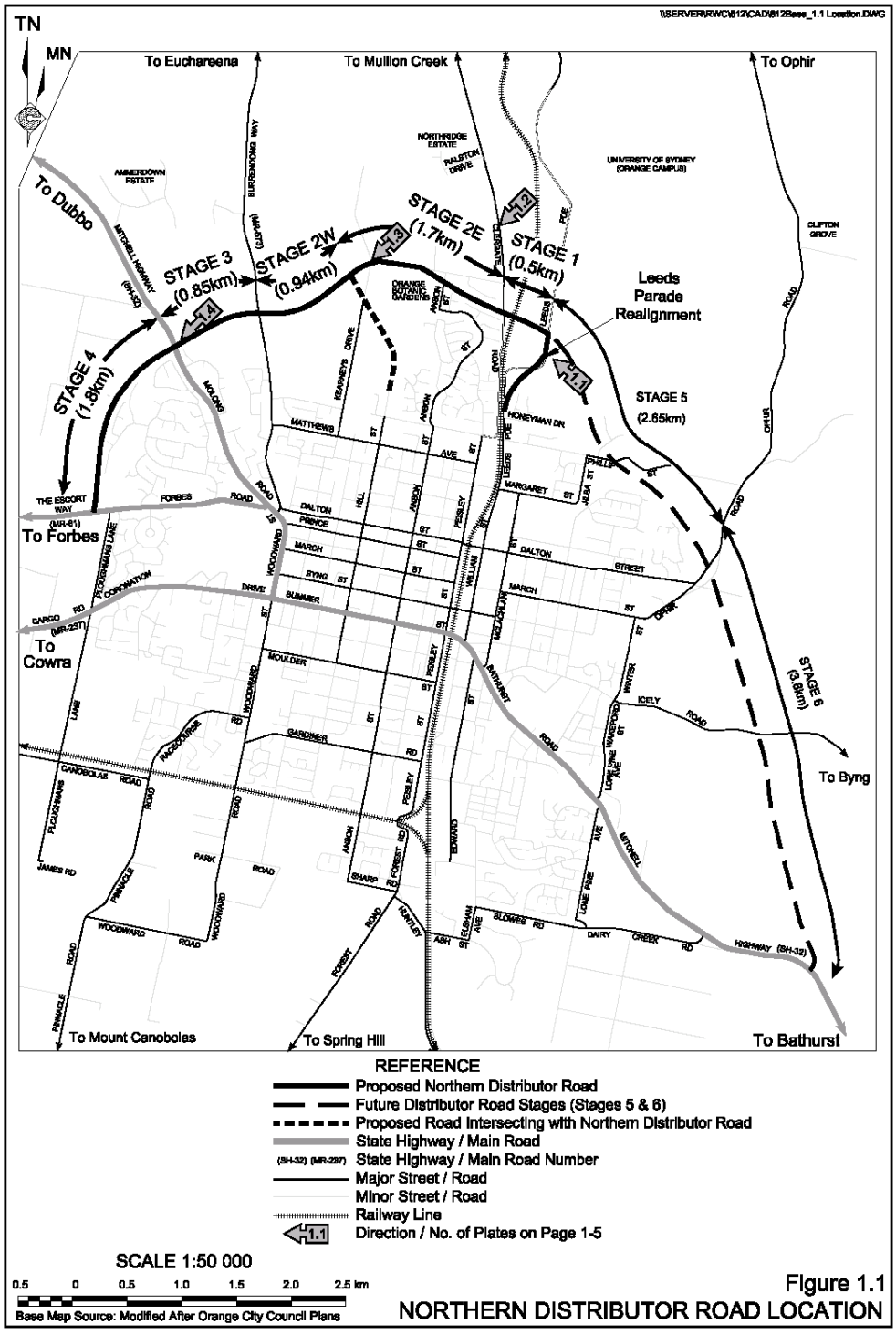


Figure 1.1
NORTHERN DISTRIBUTOR ROAD LOCATION

EXTRACT FROM NDR EIS PREPARED BY RW CORKERY & CO. JANUARY 2004
(Note: reference to "plates" refers to the EIS)

The Orange City Development Contributions Plan 1999 identified distributor roads to the north of the urban area as the priority for the next five years. The reference to a 5-year works program for the purposes of acquisition under Clause 62(2)(a) applies to land within Zone 5(b) located between Burrendong Way (formerly March Road) and Ophir Road.

The Orange City Development Contributions Plan 1999 refers to the dedication of distributor-road land as a development condition.

In January 2003, the Minister for Roads signed a deed for the RTA to contribute $600,000 per year for 10 years for the whole distributor-road route. Following this decision, Council will concentrate on that part of the route between Leeds Parade and the Escort Way over a 10-year timeframe, commencing in the vicinity of Leeds Parade and Clergate Road.

DEVELOPMENT ON DISTRIBUTOR ROAD PRIOR TO ACQUISITION

Prior to Council acquisition of distributor roads, the land may be used or developed for purposes that would be permitted on adjoining land. While all reasonable measures should be taken to locate structures and works away from the planned distributor-road route, these may be located on land affected by the distributor road zone subject to Council consent. Such a structure or work should be able to be removed or relocated upon Council's acquisition or later-agreed time.

Council may impose a condition requiring that the structure or work approved under clause 63 be removed at the cost of the developer upon Council acquisition or later time agreed by Council.

RESTRICTED ACCESS

Distributor roads subject to restricted-access provisions are indicated on the LEP 2000 plan map.

Driveways onto the distributor road from adjoining land are not permitted on roads indicated on the LEP 2000 Plan Map as restricted-access roads.

Public roads connecting to distributor roads should provide the function of at least a collector road and be well spaced to optimise the function of the distributor roads.

PO 10.2-1 PLANNING OUTCOMES – DEVELOPMENT AFFECTING DISTRIBUTOR ROAD ROUTES

1 Development is located an adequate distance from distributor roads, taking into account reasonable road impacts (particularly road noise).
2 Any development carried out within distributor-road land prior to acquisition may be removed at reasonable cost when required.
3 New access to distributor roads comprise a small number of collector roads only, located so as to optimise the function of the distributor road.
4 Distributor-road land is acquired according to staging priorities.

RELATED INFORMATION –DISTRIBUTOR ROADS

1 NSW ***Environmental Criteria for Road Traffic Noise***
2 Travers Morgan 1994. ***Orange Bypass Study***. Commissioned by NSW RTA Western Region URS. 2001. ***Route Options Investigation***.

10.3 DEVELOPMENT ALONG MAJOR TRANSPORT ROUTES

VISUAL IMPACT – RURAL AREAS

Main roads leading to and from the urban area of Orange pass through a rural landscape. The proposed distributor roads also affect some rural areas around the urban area of Orange.

Development involving the erection of structures or works on land within a rural area has the potential to alter the rural character of the area. Rural development visible from major roads will need to satisfactorily demonstrate that:

- it is sited in a way that minimises its visual impact when viewed from the main road
- its external materials and colour schemes minimise its visual impact through the effective use of natural or neutral colours
- it incorporates landscaping that effectively reduces the development's visual impact on the road. For development that significantly disturbs the landscape character because of the area of disturbance (such as extractive industries or mines) or the number or type of structures (such as transport terminals, depots or rural industries), the landscaping is to screen the development from the highway

VISUAL IMPACT – URBAN AREAS

Main roads in the Orange urban area predominantly pass through residential areas and distinct business and industrial areas as they lead to and from the City Centre. Planned distributor roads also traverse residential and industrial areas to provide for improved local-traffic opportunities.

Development in urban areas will need to incorporate reasonable setbacks of buildings, landscaping and quality urban design fronting the arterial road.

Where the rear boundaries of residential lots are proposed to adjoin an existing arterial road, a minimum 10-metre-wide buffer strip in the form of public open space will need to be provided from the road alignment to provide for screen landscaping. The provision of this area will be deemed to comprise public open space required for residential subdivisions (whether or not this area is to be dedicated as public reserve or public road).

Where the rear boundaries of residential lots are proposed to adjoin a distributor road, a rear building line is to be established a minimum of 30 metres from the centre of the reserve.

Where commercial development adjoins a distributor road, a minimum 10 metre wide setback from the boundary with the distributor road is to be provided. The setback area may incorporate suitably landscaped parking and manoeuvring areas, but is not to include a loading dock.

The façade of any commercial building that faces a distributor road is to be suitably embellished with articulation and fenestration. Long expanses of unadorned walls facing the distributor road are to be avoided.

Signage that may be visible from a distributor must not be animated and should be designed to minimise potential distraction to motorists. It is preferable to have signage designed for "glance recognition" only – i.e. one bold logo and limited text, such as the name of the business, in a large font size is strongly preferred over complex messages with substantial text that are likely to require prolonged attention to recognise and interpret.

Commercial lighting on properties adjoining residential areas must be hooded and shielded so as to prevent glare from impacting on any residential development in the vicinity and users of the Distributor Road.

ACCESS

The primary function of arterial roads is to facilitate the efficient and convenient movement of "through" traffic - traffic that predominantly passes through an area from an origin and to a destination outside of that area. Local traffic is introduced to arterial roads at selected points subject to the strategic planning for the area.

Access to individual properties from arterial roads reduces the ability of these major transport routes to provide their primary function to move traffic through an area. For this purpose, the proposed distributor roads include restricted-access elements where direct vehicular access from land is prohibited to the distributor road.

Before proposing development with direct access to a main road, alternative access arrangements must first be considered.

Where the land has the ability to connect to a road other than an arterial road, then access to the development should be from the local road, not the arterial road. Accessways must be located a reasonable distance from the intersection to ensure safe access to and from the land and to ensure turning traffic using the intersection is not affected.

Applications for development proposing access to an arterial or main road should include evidence that the proposed access arrangements are satisfactory to the relevant roads authority. The NSW Roads and Traffic Authority (RTA) is the roads authority for roads classified as Main or Regional roads.

Where access is proposed to a main road, (after considering all alternatives) the following factors must be considered:

- proximity to other accessways and road intersections in the vicinity
- road sight distance at the accessway
- frontage length of the land to provide adequate separation of accessways
- traffic arrangements within the land to ensure that all vehicles entering the land do not have to reverse onto the main road
- intersection design and treatment required to ensure safe and convenient entry and exit from the land

For major developments Council may require a traffic impact study to be prepared.

NOISE IMPACTS

Development that is likely to be sensitive to noise should take into account the potential impacts of arterial roads in the vicinity. Such uses are likely to include residential development, hospitals and schools proposed to be located in close proximity of main or distributor roads.

Noise-mitigation measures that should be considered for sensitive uses in proximity to arterial roads include:

- separation between the noise source and the noise-sensitive land use by locating less noise-sensitive uses adjacent to the road
- taking advantage of topographic features that can be used to screen noise impacts when planning land use in the area
- laying out subdivisions/dwellings in ways that maximise the area shielded from noise

- using barriers
- appropriate building design, orientation and landscaping features
- building layout to locate less noise-sensitive areas such as the kitchen, storage areas, garages and laundry towards the noise source
- construction techniques according to acoustic principles

PO 10.3-1 PLANNING OUTCOMES – DEVELOPMENT NEAR MAJOR ROADS

1 Development on land fronting and visible from a major road or distributor road provides for quality design on the highway and/or distributor road through landscaping, building setbacks façade design, external colours and materials and siting.
2 Residential buildings address potential noise impacts in design from adjacent main roads.
3 Direct access to major roads is limited and is constructed to the requirements of the relevant roads authority.
4 Residential lots are set back from planned distributor roads to provide a reasonable separation between future roads and residential land.
5 Where direct access to a main or arterial road is denied by the Roads Authority and comprises residential subdivision, any rear or side fences are set back and screened with dense landscaping.
6 Commercial buildings adjoining a distributor road are setback from the property boundary by at least 10m.
7 Lighting and signage visible from a distributor road is not animated and is designed so as not to distract motorists beyond glance recognition.

RELATED INFORMATION – DEVELOPMENT ALONG MAJOR TRANSPORT ROUTES

1 ***A Guide for Homeowners, Designers and Builders- Reducing Traffic Noise***, RTA, August 1991.
2 ***AMCORD-A National Resource Document for Residential Development***, former Commonwealth Department of Housing and Regional Development.
3 ***Better Urban Living***, 'Acoustic Privacy' section, Department of Urban Affairs and Planning and Government Architect.
4 RTA Environmental Noise Management Manual >

10.4 DEVELOPMENT ALONG CADIA ROAD

The mining developments at Cadia, south of Orange, have contributed to increased traffic volumes on Cadia Road. Average weekday-traffic volumes on Cadia Road in the vicinity of Berrilee Road increased from 565 vehicles per day (of which, 28 were trucks) in 1995 to 1,416 in 1999 (with 122 trucks) and traffic volumes are predicted, according to the Mine Environmental Impact Study, to exceed 1,500 (with 130 trucks) by 2002. These predictions will require validation by future traffic counts.

The increased traffic volumes on Cadia Road require careful consideration of the number, location and treatment of new intersections on Cadia Road.

As a consequence of predicted increases in heavy traffic (trucks) on Cadia Road, the Cadia Mine was required to undertake noise monitoring and, if necessary, noise-attenuation measures for houses. Potentially noise-sensitive development in close proximity to Cadia Road must incorporate measures to ensure that the activity is not unreasonably affected by traffic noise as a consequence of the predicted traffic levels and type.

Noise-sensitive development should be located as far as possible from Cadia Road.

PO 10.4-1 PLANNING OUTCOMES – DEVELOPMENT ALONG CADIA ROAD

1 Residential development on land fronting Cadia Road is set back sufficient distance or incorporate appropriate noise attenuation in the house design so as not to expose residents to potential noise conflicts associated with mine-related traffic using Cadia Road.

10.5 USE OF LAND AT ORANGE (SPRING HILL) AIRPORT



Photograph - Orange Airport terminal

LEP 2000 recognises that airports provide unique opportunities for aircraft-related businesses. Such activities obviously require access to air-transport facilities. Clause 66 provides for aircraft-related industrial or business uses to be carried out on land within the airport site or on adjoining land subject to development consent.

Since the airport is located within the City's water-supply catchment, any proposal for development would need to demonstrate that the development will not adversely affect the water catchment through effluent generation or as a consequence of runoff.

Being in a rural location, the availability of services (ie, water, sewerage, gas, telecommunications, power) may be limited. Where the activity has the potential to increase the demand for utility services, the application must indicate how those needs can be reasonably met.

Where an aircraft-related development is proposed on land adjoining the airport, the application must indicate how the use of the land will relate to the operations of Orange Airport, with particular attention to internal movement of aircraft and other vehicles.

PO 10.5-1 PLANNING OUTCOMES – AIRPORT-ASSOCIATED DEVELOPMENT

1 Development positively contributes to the operation of the airport.
2 Adequate services are available to meet the development's requirements and includes measures to protect the water quality of the City's water-supply catchment.

10.6 DEVELOPMENT IN THE VICINITY OF ORANGE (SPRING HILL) AIRPORT

Development in the vicinity of Orange Airport may potentially be affected by, or affect the operations of, the Airport. Development may potentially be affected by noise. The operations can also be affected by structures projecting within the airspace around the airport.

NOISE

Avoidance is preferable to putting in measures to rectify a land-use conflict, therefore all attempts should be made to locate potentially noise-sensitive development (such as houses) away from the airport flight-paths.

Where there are no reasonable alternative locations available, development applications for noise-sensitive uses within the hatched area identified on the LEP plan map must indicate how the development would comply with the *Australian Standard AS 2021- 1994 Acoustics-Aircraft Noise Intrusion - Building Siting and Construction.*

OBSTACLES

An *Obstacle Limitation Surfaces Plan for Orange* defines relative levels up to which structures (obstacles) may project into the airspace around Orange Airport.

The current *Obstacle Limitation Surfaces Plan for Orange* held in the offices of Council is deemed to form part of this Plan.

Applications for development proposals incorporating structures that have the potential to intrude within the limitation airspace must be able to demonstrate that the development does not intrude within the airspace indicated by the *Obstacle Limitation Surfaces Plan for Orange*. The Inner Horizontal Surface on the Plan is set at a relative level (RL) of 990.7 m AHD. Generally, the elevation of land around the Airport is below 975 m AHD. Therefore, structures that are less than 15-metres high are unlikely to be affected.

Levels are lower for land adjacent to the runways and on aircraft-approach and departure flight-paths.

The *Obstacle Limitation Surfaces Plan for Orange* should be referenced for all development in the vicinity of the Orange Airport and associated flight-paths.

PO 10.6-1 PLANNING OUTCOMES – DEVELOPMENT IN THE VICINITY OF THE AIRPORT

1 Noise-sensitive development is located outside the airport-noise zone.
2 Where there is no alternative location, development occurs within the hatched area around the Orange airport in full compliance with *Australian Standard AS 2021- 1994 Acoustics-Aircraft Noise Intrusion - Building Siting and Construction.*
3 Development in the vicinity of the airport complies with the *Obstacle Limitation Surfaces Plan for Orange*.

10.7 SITE SPECIFIC DEVELOPMENT CONTROL PLAN – 185 LEEDS PARADE

INTRODUCTION

Land to which this Development Control Plan applies

This section of the DCP provides specific development provisions for 185 Leeds Parade (Lot 4 DP 1185665). Development within this land will need to have regard to this section as well as the other sections of the Orange Development Control Plan 2004.

In the event of any inconsistency between this section and the other sections of the Orange Development Control Plan 2004, this Section will prevail to the extent of the inconsistency.

DEVELOPMENT IN THE VICINITY OF THE RAIL CORRIDOR

Objectives

A. To ensure development is not adversely affected by rail noise and vibration

Controls

1. Council require any development application to be accompanied by a rail noise and vibration assessment.

SETBACKS

Objectives

A. To ensure built form design does not impact on the presentation of the site as an entry point into Orange

B. To ensure appropriate landscape measure are in place to create a visual buffer and to enhance the environmental performance of the site

C. To ensure sufficient buffers to surrounding residential land

Controls

1. Council require any development application to be accompanied by a rail noise and vibration assessment in accordance with *'Development Near Rail Corridors and Busy Roads – Interim Guidelines (2008)'*
2. A minimum building setback of 3 metres applies to the western boundary of the site or as required by the rail noise and vibration assessment
3. A minimum landscape bed width of 6 metres is to be provided within the 10 metre setback zone
4. A minimum building setback of 10 metres will apply along the Leeds Parade frontage of the site. No buildings are permitted within 10 metre setback zone.
5. Commencing at the 10 metre setback line, a 5 metre wide building articulation zone applies

BUILDING DESIGN

Objectives

A. To ensure appropriate presentation of the site as an entry point into Orange

B. To ensure a high design quality through building design principles and selection of materials

Controls

1. High quality design, materials and finishes should respect the high profile nature of the site. Examples of acceptable building materials and finishes include:
    i. High quality metal cladding (standing seam, wide pan and the like).
    ii. Aluminium wall cladding with expressed joints.
    iii. Pre-finished or painted FC sheeting.
    iv. Face brick or (face brick cladding) as main wall finish; feature wall finish; or highlight.
    v. Stonework or stone cladding feature walls or highlights
    vi. Rendered and/or textured wall finishes (masonry or lightweight construction) painted in colours approved by Council. Expansive walls in bright colours to depict corporate branding is discouraged.
    vii. High quality commercial shopfront framing and glazing.
    viii. Low reflective materials
2. Building design should demonstrate modulation and articulation of the horizontal and vertical proportions of facades and street facing walls to reduce bulk and scale. This may be achieved by the following:
    i. Design building bays and openings to be vertically proportioned and consistent or regular along a façade or building elevation.
    ii. Break expansive facades into smaller elements that relate to the use of the building and its components.
    iii. Accentuation of vertical elements such as windows, entrances, columns, posts, parapets and the like.
    iv. A change in materials that relates logically to the facade/elevation components
3. For all new buildings within the site and particularly along the Leeds Parade articulation zone:
    i. Facade treatments are to incorporate architectural elements to improve presentation to public areas, particularly Leeds Parade. These may include but not be limited to verandahs; awnings; glazing; modulated walls; a mixed but complementary palette of building finishes and materials.
    ii. To establish a human scale response, continuous expanses of blank wall shall not exceed 6 metres. Features to break the expanse may include but not be limited to windows; doors; columns; recessed or glazed breaks; modulation; clearly expressed vertical joints or banding; a change in materials or colour.

iii. Mechanical plant and back-of-house areas are to be screened visually and acoustically using elements such as discreet building design; architectural screens; and landscaping.

iv. Minimise the provision of roller doors/loading docks along the Leeds Parade elevation of buildings. Where service areas face the street architectural design, screening, landscaping and pavement colours/textures are used to minimise the dominance of service areas relative to other aspects of the facade.

SIGNAGE

Objectives

A. To ensure an appropriate scale and quality of signage that can be provided across the site

B. To ensure signage does not dominate the streetscape and impact upon motorist

C. To ensure signage does not obliterate architectural features

Controls

1. Pylon signage around the site frontages (Leeds Parade and Northern Distributor Road) may be permitted as follows:

    a. One free-standing sign pylon along the Northern Distributor Road frontage of the site, east of the new road intersection (already approved in DA 322/2019)

    b. Two free-standing sign pylon signs along the Northern Distributor Road frontage of the site, west of the new road intersection

    c. One free-standing sign pylon sign at the southern end of the site between Leeds Parade and the new road intersection

    d. The maximum height of the above pylon signs is 8 metres. The maximum width is 3 metres

2. Pylon or free standing signs are permitted within the site and are be subject to the following requirements:

    a. For single tenancy buildings/sites – 1 sign only; maximum height of 4.5 metres and maximum width of 1.5 metres

    b. For multi-tenancy buildings/sites – 1 sign only as a directory panel which allows each tenant to identify their business. Maximum height of 6 metres and maximum width of 2 metres

    c. Business identification signage is to be integrated into the architectural design and must not obliterate architectural features or project beyond silhouette of the building

LANDSCAPING

Objectives

A. To ensure landscaping contributes to the visual amenity of the site by providing softening of the buildings and vehicle areas particularly when viewed from Leeds Parade, Northern Distributor Road, the Main Western Rail corridor, and the new internal road

B. To ensure landscaping enhances the environmental performance of the site

Controls

1. A detailed landscape plan is to be submitted with a development application
2. Landscape plans should:
    i. Articulate any changes in level or mounding that has been designed to mitigate any visual or noise impacts
    ii. Identify species and plantings on the plan
    iii. Identify any water sensitive urban design measures
    iv. Provide a planting schedule including species, spread and height to Council's satisfaction
    v. Provide a sufficient number of shade tree plantings and landscape beds particularly across expansive car park and vehicle areas to reduce the urban heat island effect. Minimum of 1 shade tree per 8 parking spaces. Alternative shade solutions such as solar panel covered shade structures may be considered.
    vi. Where relevant, refer to water sensitive urban design measures that preserve and improve stormwater quality while regulating the flow off site to be no greater than pre-development flows
    vii. Identify proposed fencing material and finish, noting the need for fencing along the Leeds Parade and Northern Distributor Road boundaries (where proposed) to be consistent or complementary. Industrial style chain wire fencing (i.e. galvanised finish with barbed top wires) is not acceptable along these frontages
    viii. Ensure landscaping buffers utilise sufficient tree and understorey planting to minimise light spill, noise and other amenity impacts from impact on adjoining residential areas

AMENITY

Objectives

A. Ensure the site does not impact adversely on the existing residential neighbourhoods to the west and zoned land to the east

B. To ensure the potential noise impacts of future development are considered

Controls

1. With any development Council requires a Noise Impact Assessment by a suitably qualified person to ensure that development does not generate noise of more than 5dBA above the background ambient level measured at the property boundary

2. Encourage slow speeds and a safe traffic environment within the site

ACCESS AND MOVEMENT

Objectives

A. To ensure traffic generation on site does not compromise the safe and efficient movement of traffic on the Northern Distributor Road

B. Ensure the safety of pedestrians and cyclists accessing the site

C. Encourage active transport

D. Encourage a slow speed environment

Controls

1. Development on the site must have regard to the nature and scale of traffic generation within the site and must be accompanied by a Traffic Impact Assessment prepared in accordance with but not limited to:
    a. Austroads Guide to Road Design;
    b. Stantec Orange Strategic Transport Model;
    c. RTA guide to traffic generating development 2002;
    d. Traffic generation from surrounding development;
    e. Future growth of the network;
    f. The level of service of key intersection;
    g. Impacts on neighbouring accesses;
    h. Consideration of the implications of changes to the design vehicle (largest vehicle) on existing and future access arrangements;
    i. Connectivity of road users to the site i.e pedestrians/cyclists;
    j. Road safety implications from increased traffic generation; and
    k. Any council's specifications or documentation.
2. That any identified upgrades or future upgrades to classified road intersections or infrastructure as part of the Traffic Impact Assessment and be accompanied by strategic designs for the proposed civil works on the classified road network.
3. A development application must be accompanied by a Traffic Management Plan that gives consideration to traffic calming measures which may include but not be limited to the following:
    i. Speed humps/raised segments of driveway
    ii. Landscape elements
    iii. Medians
    iv. Chicanes/narrowing at strategic points
    v. Use of different pavements/finishes to create a shared zone that is pedestrian friendly
4. Bike racks are to be provided at safe locations on site

SAFETY AND CRIME PREVENTION

Objectives

A. Ensure safe movement to and from the site through the application of CPTED principles

B. Ensure passive surveillance through design is considered in any future development application

Controls

1. Landscaping is to be configured to minimise concealment opportunities and maximise passive surveillance to encourage active street environments to enhance the sense of safety

2. Public lighting is to be provided to all areas within the site to promote safety

3. Enhanced levels of lighting are to be installed in areas of pedestrian or cyclist patronage and along pathways provided to and from the site